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PRIVACY POLICY

This Privacy Policy was last updated on Febuary 24th, 2021.

Our Policy

Welcome to Fishtank Learning, a website that provides teachers with the curriculum and resources they need to engage, challenge and inspire their students. Fishtank Learning curriculum materials have been developed and curated by expert teachers and tested and refined in classrooms over many years.

This Privacy Policy describes the practices and policies for the Fishtank Learning website located at www.fishtanklearning.org (“Website”). This Website is owned and operated by Fishtank Learning, Inc. (“Fishtank Learning,” “we,” “us” and/or “our”).

This Privacy Policy sets forth our policy with respect to data that can be used to identify or contact you (“Personal Data”) and other information that is collected from you when you visit the Fishtank Learning website (“Website”). We may use and disclose the Personal Data and other information that we collect through the Website, as stated in this Privacy Policy.

By visiting the Website, you are accepting the practices and policies described in this Privacy Policy. We may update this Privacy Policy from time to time, so please check this Privacy Policy periodically for changes. The date this Privacy Policy was last updated is stated at the beginning of this document.

Your Choices:

You can use the Website without providing any Personal Data. If you choose not to provide any Personal Data, you may not be able to use certain features of the

Website.

Information We Collect and How We Collect It:

When you interact with us through the Website, we may collect Personal Data and other information from you, as further described below:

Personal Data You Provide Through the Website:

We collect Personal Data from you when you voluntarily provide such information, such as when you contact us with inquiries, respond to one of our surveys, register for access to the Fishtank Learning curriculum, or apply for opportunities with Fishtank Learning. Such Personal Data may include, without limitation, your name, email address, billing and shipping address, and/or credit card information.

By voluntarily providing us with Personal Data, you are consenting to our use of it in accordance with this Privacy Policy.

Data Collected by Automated Means:

When you use our Website, we may automatically collect information about your use of the Website, including through the use of cookies, web beacons and other tracking technologies ("Automated Information"). Automated Information may include device information such as IP address, device identifiers, and operating system, as well as usage information such as time and duration of use, interaction with content, information stored in cookies or similar technologies. Fishtank Learning may store such Automated Information itself or such Automated Information may be included in databases owned and maintained by Fishtank Learning agents or service providers. The Website may use such Automated Information and pool it with other information to track, for example, the total number of visitors to the Website, the number of visitors to each page of the Website, and the domain names of our visitors' Internet service providers.

Cookies:

In operating the Website, we use a technology called "cookies." A cookie is a piece of information that the computer that hosts our Website gives to your browser when you access the Website. Our cookies help provide additional functionality to the Website and help us analyze Website usage more accurately. For instance, our Website may set a cookie on your browser that allows you to access the Website without needing to remember and then enter a password more than once during your visit to the Website. You can refuse or accept cookies from the Website at any time by activating the cookie settings in your browser. On most web browsers, you will find a “help” section on the toolbar. Please refer to this section for information on how to receive notification when you are receiving a new cookie and how to turn cookies off. By not accepting cookies, some features on the Website may not fully function, and you may not be able to access certain information on the Website. We recommend that you leave cookies turned on because they allow you to take advantage of some of the Website’s features.

Google Analytics:

We also use Google Analytics to help analyze how users use our Website. This tool uses cookies to collect standard Internet log information, device information, and visitor behavior information in an anonymous form. The information generated by the cookie about your use of our Website (including IP address) is transmitted to Google. This information is then used to evaluate visitors' use of our Website and to compile statistical reports on activity on our Website for Fishtank Learning.

Aggregated Personal Data:

Fishtank Learning may aggregate and/or de-identify any Personal Data that we collect, such that the information no longer identifies any specific individual. We may use, disclose and otherwise process such information for our own

legitimate business purposes – including historical and statistical analysis and business planning – without restriction. For example, in an ongoing effort to better understand and serve the visitors to our Website, Fishtank Learning may conduct research on Website visitors' demographics, interests, and behavior based on the Personal Data and other information provided to us. This research may be compiled and analyzed on an aggregate basis, and Fishtank Learning may share this aggregate data with its affiliates, agents, and partners. Fishtank Learning may also disclose aggregated user statistics in order to describe our educational products, services, and initiatives to current and prospective partners, and to other third parties for other lawful purposes.

Do Not Track:

We may allow third party service providers and other third parties to use cookies or other technologies on our Website that collect information about your browsing activities over time and across different websites following your use of the Website. Do Not Track ("DNT") is an optional browser setting that allows you to express your preferences regarding tracking across websites. We currently do not respond to DNT signals. We may continue to collect information in the manner described in this Privacy Policy from web browsers that have enabled DNT signals or similar mechanisms.

Our Use of Your Personal Data and Other Information:

Fishtank Learning uses the Personal Data you provide in a manner that is consistent with this Privacy Policy. If you provide Personal Data for a certain reason, we may use the Personal Data in connection with the reason for which it was provided. For instance, if you contact us by e-mail, we will use the Personal Data you provide to answer your question or resolve your problem. Or, if you provide your credit card information to purchase courses, we may share that information with third parties to process such payments. Also, if you provide Personal Data in order to obtain access to Fishtank Learning curriculum

materials and services, we will use your Personal Data to provide you with access to such materials and services and to monitor your use of such materials and services. Fishtank Learning may also use your Personal Data and other personally non-identifiable information collected through the Website to help us improve the content and functionality of the Website, to better understand our visitors, and to improve the Fishtank Learning content and services. Fishtank Learning and its affiliates may use this information to contact you in the future to tell you about opportunities, educational programs, interactive applications, or online learning tools we believe will be of interest to you. In the event we contact you, including via email, we will provide you with a method to opt out of or opt in to receiving further communications to the extent required by law. In addition, if at any time you wish not to receive any future communications or you wish to have your name deleted from our mailing lists, please contact us as indicated below.

Our Disclosure of Your Personal Data and Other Information:

Fishtank Learning is not in the business of selling your information. We consider this information to be a vital part of our relationship with you. Except as stated in this Privacy Policy, we do not reveal Personal Data about you to third parties for their independent use unless you expressly authorize us to do so. There are, however, certain circumstances in which we may share your Personal Data with certain third parties without further notice to you, as set forth below:

Third-Party Service Providers or Agents:

Fishtank Learning may disclose your Personal Data to service providers and/or agents who act for or on our behalf for further processing, such as: mailing information; maintaining databases; processing payments or donations; marketing; data management and aggregation; evaluating the usefulness of the Website; and technical support. When we employ another company to perform

a function of this nature, we only provide it with Personal Data that the company needs to perform its specific function.

Corporate Transactions:

We may also transfer Personal Data we collected from you to a third party as part of a corporate business transaction such as a merger, acquisition, reorganization, joint venture, financing or sale of our assets.

Legal Necessity:

Fishtank Learning may disclose your Personal Data if required to do so by law or in the good faith belief that such action is necessary to (i) comply with a subpoena, legal process, government request or any other legal obligation, (ii) protect and defend the rights or property of Fishtank Learning, (iii) prevent, investigate, detect, or prosecute criminal offenses or attacks on the technical integrity of the Website or our network, (iv) protect the rights, privacy, property, business, or safety of Fishtank Learning, its partners and employees, users of the Website and/or the public, and/or (v) protect against legal liability.

Exclusions:

This Privacy Policy does not apply to any Personal Data collected by Fishtank Learning other than Personal Data collected through the Website. This Privacy Policy does not describe the ways in which we may collect or use Personal Data obtained offline in other ways, and it does not address or control the privacy practices of other websites (including those we link to), which may have their own policies. We encourage Website users to be aware when they leave the Website and to read the privacy statements of each and every website they visit that collects Personal Data.

Unsolicited Information:

Unsolicited information (including, but not limited to, information posted to any public areas of the Website, such as comments sections, any ideas for new

materials or modifications to existing materials offered through Fishtank Learning, and other unsolicited submissions) you provide to us may be deemed to be non-confidential and Fishtank Learning will be free to reproduce, use, disclose, and distribute such unsolicited information to others without permission, compensation, limitation or attribution, provided that any Personal Data within such unsolicited information shall be treated in accordance with this Privacy Policy and applicable law.

Children:

Fishtank Learning does not knowingly collect Personal Data from children under the age of 13 and is committed to maintaining the privacy of all children in accordance with applicable laws. Fishtank Learning maintains Personal Data in students' educational records in accordance with the Family Educational Rights and Privacy Act ("FERPA") and will only disclose such data with appropriate consent or as is otherwise permitted under FERPA. If you are under the age of 13, please do not submit any Personal Data through the Website. We encourage parents and legal guardians to monitor their children's Internet usage and to help enforce our Privacy Policy by instructing their children never to provide Personal Data on the Website without their permission. If you have reason to believe that a child under the age of 13 has provided Personal Data to Fishtank Learning through the Website, please contact us, and we will endeavor to delete that information from our databases.

Links to Other Websites:

This Privacy Policy applies only to the Fishtank Learning Website. The Website may contain links to other websites not operated or controlled by Fishtank Learning (the "Third Party Sites"). The policies and procedures we described here do not apply to the Third Party Sites. The links from the Fishtank Learning Website do not imply that Fishtank Learning endorses or has reviewed the Third

Party Sites. We suggest contacting those sites directly for information on their privacy policies.

Security:

Fishtank Learning uses commercially reasonable administrative, technical and physical safeguards for the Website designed to protect the Personal Data provided via the Website from loss, misuse, and unauthorized access, disclosure, alteration, or destruction. Of course, despite these measures, we cannot guarantee perfect security of the networks, servers, and databases we operate or that are operated on our behalf. No Internet or e-mail transmission is ever fully secure or error free. In particular, e-mail sent to or from the Website may not be secure. Therefore, you should take special care in deciding what information you send to us via e-mail. Please keep this in mind when disclosing any Personal Data to us via the Website.

Use of the Website from Outside the United States:

We do not represent or warrant that the Website, or any part thereof, is appropriate or available for use in any particular geographic location. If you choose to access our Website, you do so on your own initiative and at your own risk, and are responsible for complying with all local laws, rules, and regulations applicable in your jurisdiction. The Website is hosted in the United States and is governed by United States law. If you are visiting the Website from outside the United States, your information will be transferred to, stored and processed in the United States where our servers are located and our central database is operated. The data protection and other laws of the United States and other countries might not be as comprehensive as those in your country. By using the Website, you consent to your information being transferred to our facilities and to the facilities of those third parties with whom we share it as described in this Privacy Policy.

Other Terms and Conditions:

Your access to and use of the Website is subject to the Terms of Use.

Changes to Fishtank Learning's Privacy Policy:

The Website and our organization may change from time to time. As a result, at times it may be necessary for Fishtank Learning to make changes to this Privacy Policy. Fishtank Learning reserves the right to update or modify this Privacy Policy at any time and from time to time without prior notice. Please review this policy periodically, and especially before you provide any Personal Data. This Privacy Policy was last updated on the date indicated above. Your continued use of the Website after any changes or revisions to this Privacy Policy will indicate your agreement with the terms of such revised Privacy Policy.

Contacting Fishtank Learning:

Please feel free to contact us at contact@fishtanklearning.org if you have any questions about Fishtank Learning's Privacy Policy or the information practices of the Website.

Special Notice to European Economic Area, Switzerland and United Kingdom Users:

The following provisions apply only to users residing in the European Economic Area (EEA), Switzerland and the United Kingdom, and provides information to your rights pursuant to General Data Protection Regulation ("GDPR"). Pursuant to GDPR, we are required to provide those residing in the EEA, Switzerland and the United Kingdom (hereinafter, the "EU Visitors") additional information and rights related to the "Personal Information" we collect about them. We summarize such information and rights below.

How to Contact Us:

Fishtank Learning, Inc., (the "Data Controller") is the owner and operator of the Website. If you need to contact us for any reason related to this Privacy Policy or your use of the Website, please contact us at the following address:

Fishtank Learning, Inc.

1660 Soldiers Field Road, #1049

Brighton, MA 02135 USA

Purpose for Information Collection:

As noted in this Privacy Policy, you may visit our Website without being required to provide us with any Personal Data. However, should you decide to provide such information, the information we collect will be used to meet your requests, or to provide you with the applicable information or service requested, and as further described herein.

Legal Grounds for Processing Personal Data:

Fishtank Learning will process personal data that we receive from EU Visitors on the ground that it is in our legitimate interest for the effective administration of the Website, or to fulfill and/or address your requests.

Your Information and Your Choices; Withdrawal Of Consent:

GDPR provides EU Visitors with additional rights in respect to the Personal Data we hold about you, including the right: (i) to be informed about the Personal Data we have collected; (ii) to have your Personal Data deleted; and (iii) to lodge a complaint about our processing of your Personal Data with your local supervisory authority. Upon appropriate written request we will update or amend your Personal Data, but we reserve the right to use any information previously obtained to verify your identity or take other actions that we believe are appropriate and lawful. We will respond to your request within a reasonable timeframe.

Data Retention:

We will retain your information for as long as needed, or otherwise as is reasonable and customary given the nature of the relationship you have with

Fishtank Learning.